DIVISION BENCH **ITEM NO.4**

IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH,
PRAYAGRAJ

CP (CAA) No.05/ALD/2023 IN
CA (CAA) No.9/ALD/2022
(SECOND MOTION)

Under Section 230-232 of the Companies Act, 2013
In the matter of Scheme of Amalgamation between:

EPACK COMPONENTS PRIVATE LIMITED
(CIN: U74999UP2019PTC115950)

……. **Petitioner/ Transferor Company**

WITH

EPACK DURABLE PRIVATE LIMITED
(CIN: U74999UP2019PTC116048)

……. **Petitioner/ Transferee Company**

Coram:

HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)

HON'BLE MR. ASHISH VERMA, MEMBER (TECHNICAL)

Present :

For the Petitioner Companies : Sh. Saurabh Khanna with Sh. Aniket Chatterjee, Advs.
For ROC, U.P. Kanpur : Sh. Shivendra Bahadur Singh, CGSC
For O.L. Alld/ RD (NR) : Mr. Ajeet Kumar Singh, AOL

ORDER

1. This is a joint Second Motion company petition filed by the Applicant Companies, namely, **Epack Components Private Limited (**Petitioner/ Transferor Company) and **Epack Durable Private Limited** (Petitioner/ Transferee Company) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

-Sd- ***-Sd-***

2. The petitioners companies have prayed for sanctioning of the Scheme of Amalgamation in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections. The First Motion application seeking directions for dispensation of meetings of Equity Shareholders of the Petitioner Companies no.1 & 2, preference shareholders of Transferee Company and for convening meetings of unsecured as well as secured creditors of Petitioner Company No.1 & 2 vide Company Application No. CA (CAA) No.9/ALD/2022 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act'), necessary directions were issued on 21.02.2023 and in the said order, the meetings of the Equity Shareholders of petitioner companies, preference shareholders of Transferee Company were dispensed with and with further direction for convening the meetings of the unsecured and secured creditors of the petitioner companies nos.1 & 2 for the reasons mentioned in the aforesaid order.

3. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 21.02.2023.

4. Notices are accordingly issued in the present petition to be served by the Petitioner Companies, within two weeks, to the following Authorities namely, (i) Central Government through Regional Director (Northern Region), New Delhi; (ii) Registrar of Companies, Uttar Pradesh, Kanpur; (iii) Official Liquidator, Allahabad; and (iv) Jurisdictional Income Tax Authority bymentioning the PAN of the Company along with a copy of this petition by speed post to be sent.

5. Mr. Shivendra Bahadur Singh, Ld. Counsel present on behalf of ROC and Sh. Ajeet Kumar Singh, AOL present on behalf of Official Liquidator, Allahabad, accept notice for the same. Let additionally notice be issued to the concerned ROC and RD (NR) and concerned Income Tax Authorities (Nodal Officer as appointed by CBDT vide its order dated 17.3.2023), as mentioned in para above.

-Sd- ***-Sd-***

6. In addition to the above public notices, the notice of hearing will also be advertised in "Financial Express" in English and "Jansatta" in Hindi language, having wide circulation in District Gautam Buddha Nagar, Uttar Pradesh by not less than 10 days before the next date fixed for hearing.

7. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit of notice regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given, may be filed on or before the date of hearing fixed herein, failing which, it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 19th July, 2023 for further consideration of the approval of the scheme as contemplated between the petitioner companies.

9. The registry shall also report before the date fixed for next hearing, as to whether any objections have been received to the proposed 'Scheme'.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

30th May, 2023

Kavya Prakash Srivastava
(Stenographer)